



Appeal Decision

Site visit made on 15 September 2026

by **C Walker BA (Hons) DipTP MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 23 September 2026

Appeal Ref: 6009962

Pentire, The Avenue, Worplesdon, Surrey, GU3 3RA

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a failure to give notice within the prescribed period of a decision on an application for planning permission.
 - The appeal is made by Richard Hennity against Guildford Borough Council.
 - The application Ref is 25/P/01670.
 - The development proposed was described in the application form as 'a rear extension with first floor overhang, a forward-shifted main entrance extension, a full loft conversion to the main body of the house and removal of the low level pitched roof, and a new side garage linked by an overhanging canopy. The design features modern glazing, wrap-around overhangs, and improved access to the first floor.'
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Decision

1. The appeal is dismissed and planning permission is refused.

Preliminary Matter

2. The appeal has been made against the Council's failure to determine the application within the statutory timeframe. However, the Council has indicated that, had it been in a position to issue a decision, it would have refused planning permission. Therefore, in identifying the main issues, I have had regard to the concerns raised by the Council.
3. While the Design and Access Statement makes reference to replacing the house, it also makes clear that existing external walls would be reused. Therefore, like the Council, I have assessed the proposal as an extension rather than a replacement dwelling.
4. A revised National Planning Policy Framework (the Framework) was published in August 2026, during the appeal process. The main parties have been given the opportunity to make representations on this matter, and I have had regard to these in reaching my decision.

Main Issues

5. The main issues are:
 - whether the development would be inappropriate development in the Green Belt having regard to the Framework and any relevant development plan policies;
 - the effect of the development on the openness of the Green Belt; and

- whether any harm by reason of inappropriateness, would be clearly outweighed by other considerations, so as to amount to the very special circumstances required to justify the proposal.

Reasons

Whether inappropriate development in Green Belt

6. The appeal site lies within the Metropolitan Green Belt, as defined by the Policies Map of the Guildford Local Plan: Strategy and Sites (2015-2034) (2019) (GLPSS). Policy 2 of the GLPSS sets out that the Green Belt will continue to be protected from inappropriate development in accordance with the Framework.
7. Policy GB6 of the Framework states that development in the Green Belt is inappropriate unless one of several exceptions apply, as set out in its Policy GB7. One such exception within Policy GB7 includes (b) the reuse, extension, alteration or replacement of an existing building, provided that the existing building is of permanent and substantial construction, is lawful in planning terms, and any extension or alteration will not result in a disproportionate increase in size compared to the original building. Both Policy P2 and the Framework define 'original building' as meaning either the building as it existed on 1 July 1948, or if constructed after that date, as it was originally built.
8. Neither the Framework nor Policy P2 define what constitutes a "disproportionate" increase in size, and the assessment is therefore a matter of planning judgment having regard to the particular circumstances of the case. In this regard, the Council's Green Belt Supplementary Planning Document 2023, does not prescribe any fixed percentage increase beyond which development would be regarded as disproportionate. Instead, it advocates an assessment based on factors including the proposal's mass, bulk, external dimensions, footprint and height, the scale of the existing property relative to its plot size and the overall extent of its visual perception.
9. There is a dispute between the parties regarding the extent of the original building. The Council contends that the original building had a floorspace of approximately 242 square metres (sq.m), whereas the appellant submits that it comprised around 342 sq.m. Having regard to the evidence before me, I am not persuaded that this disagreement is fundamental to my assessment.
10. From what I have seen and read, the dwelling is a bungalow that appears to have remained largely unaltered from its original form. Moreover, no planning history has been identified which would suggest that it has been subject to any significant extensions or alterations. The Council indicates that two small outbuildings should be treated as domestic adjuncts and included within the assessment of the original building. However, those structures would in any event be removed to facilitate the proposed triple garage and therefore do not materially affect the overall comparison between the existing and proposed development.
11. In these circumstances, I am satisfied that the existing and proposed plans provide a sufficiently reliable basis upon which to undertake the assessment. On the evidence before me, the building as it presently exists is likely to represent, in all material respects, the original building for the purposes of Policy P2 and Policy GB7 of the Framework. I have therefore proceeded on that basis.

12. The existing bungalow is modest in its size and scale, comprising a single-storey dwelling with a pitched roof reaching approximately 5.59m in height. By contrast, the proposed development would substantially alter both its appearance and form through the addition of a full upper storey with a flat roof, together with extensive ground-floor extensions and garaging. Whilst the proposed height of 6.22m would not be significantly greater than that of the original building, and the dwelling would remain proportionate to the size of its plot, those factors are not determinative on their own.
13. In particular, the additional storey and the extensive horizontal expansion of the building would materially increase its bulk and massing. As a consequence, the dwelling would have a considerably greater presence than the original bungalow and would be perceived as a substantially larger building. Indeed, the proposal would transform the modest character of the existing dwelling to such an extent that it would be largely unrecognisable as the original building.
14. The parties disagree as to the extent of the increase in floorspace. The Council calculates that the proposed dwelling, including the garage accommodation, would provide approximately 424 sq.m of floorspace, representing an increase of around 75% over the original building. The appellant, by contrast, contends that the proposal would result in approximately 535 sq.m of floorspace, equating to an increase of around 56%. Notwithstanding this discrepancy, both calculations indicate a substantial increase in size over and above the original building.
15. Having regard to the proposal's significantly increased bulk, massing and visual presence, together with the substantial uplift in floorspace identified by both parties, I find that the development would constitute a disproportionate increase over and above the size of the original building. Accordingly, it would not fall within the exception set out in Policy GB7(b) of the Framework and would therefore represent inappropriate development in the Green Belt. This also brings the scheme into conflict with Policy P2 of the GLPSS.

- Grey Belt

16. The appellant contends that the appeal proposal accords with Framework policy GB7(g) which excludes development from being inappropriate in the Green Belt where all four criteria listed (i to iv) are met.
17. It is advanced that the proposal would meet an evidenced unmet need for the type of development proposed, as required by criterion ii) of policy GB7(g). However, whilst the Council are unable to meet the necessary five-year housing land supply requirement of the Framework, as this proposal is for an extension to a dwelling, there would be no net gain in housing. As such, it would have a neutral impact on unmet housing need. For the same reasons, I cannot give meaningful weight to its advancement as a self-build dwelling, and even if I did, there is no mechanism to secure it as such in any event. Therefore, as the proposal does not meet criterion ii) of this policy, I do not need to consider it against the other three criteria. This is because it would not alter the outcome, as all four criteria must be met for it to be considered as an exception to inappropriate development.

Openness

18. The proposed additions would result in a more intensive form of development across the site, increasing its bulk and mass and, by their nature, reducing the openness of the Green Belt through a narrowing of the gaps between buildings. Whilst the development would be well contained and largely screened from the roadside by existing mature vegetation, it would nevertheless introduce a permanent built form with an increased spatial presence. Limited views of the additions would also be possible from public vantage points and the wider surrounding area. Consequently, the proposal would erode the openness of the Green Belt and conflict with one of its fundamental purposes, namely to keep land permanently open, as set out in the Framework.

Other considerations

19. The proposal would facilitate the modernisation of the existing dwelling, which the appellant submits does not meet contemporary building standards. The scheme incorporates a range of sustainable design measures, including a green roof, air source heat pumps and solar photovoltaic panels. These features would improve the energy efficiency of the building, reduce its operational carbon emissions and make a positive contribution towards sustainable construction. In addition, the green roof would provide biodiversity benefits through the creation of habitat and enhanced ecological value. Taken together, these measures represent a clear environmental benefit of the proposal, to which I attach moderate weight.
20. I am cognisant that the description of development references an improved access to the first floor. However, it is not before me how the existing access is deficient and I therefore attribute this only limited positive weight.
21. My attention is drawn to other developments in the area, said to have been subject to extensive redevelopments, including those at nearby Rye House, Cranmere and Woodside. However, I have very limited detail before me to enable any comparative analysis, such that they cannot alter my findings.
22. No other very special circumstances have been advanced to justify the proposal.

Conclusion

23. I have found that the scheme constitutes inappropriate development, and that the openness of the Green Belt would be compromised by the development. The Framework requires that substantial weight should be given to any harm to the Green Belt. This weighs heavily against the scheme.
24. Policy GB6 of the Framework is clear that inappropriate development is, by definition, harmful to the Green Belt and should not be approved except in very special circumstances (VCS). Such circumstances will not exist unless the potential harm to the Green Belt by reason of inappropriateness, and any other harm resulting from the proposal, is clearly outweighed by other considerations.
25. Collectively I have given moderate weight to the other considerations in favour of the development. I am not satisfied that the harm to the Green Belt would be clearly outweighed by the other considerations. Consequently, the VSC circumstances to justify the scheme do not therefore exist.

26. For the reasons set out above, the proposal conflicts with the development plan and there are no material considerations, including the Framework, that would outweigh the conflict. I therefore dismiss the appeal.

C Walker

INSPECTOR